

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file electronically their Proposed Order for signature.

5. 9:00 AM CASE NUMBER: L24-10899
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. ANGAD SINGH
***HEARING ON MOTION IN RE: FOR ORDER AMENDING DEFAULT JUDGMENT**
FILED BY: AMERICAN EXPRESS NATIONAL BANK
TENTATIVE RULING:

I. Background

Plaintiff American Express National Bank (Amex) filed this limited civil action against defendant Angad Singh to recover amounts allegedly due on a credit card account. The complaint, filed December 11, 2024, prayed for damages in the amount of \$12,853.55, plus costs.

Defendant failed to respond to the complaint, and the clerk entered defendant's default on May 8, 2025. On September 11, 2025, the clerk entered a default judgment in favor of plaintiff in the amount of \$10,792.57. According to plaintiff, the judgment understated the amount owed because plaintiff's counsel mistakenly credited payments to which defendant was not entitled.

On October 30, 2025, plaintiff filed the present motion seeking relief under Code of Civil Procedure (CCP) section 473(b), supported by a declaration of counsel admitting the error in calculating credits and requesting correction of the judgment amount.

II. Analysis

A. Scope of Relief Available Under CCP Section 473(b)

Plaintiff's motion is made pursuant to CCP section 473(b), which provides for both discretionary and mandatory relief from a default or default judgment. The statute states, in pertinent part:

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken."

"[W]henever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

Plaintiff's motion was timely made less than six months after entry of default on May 8, 2025. Plaintiff filed the present motion on October 30, 2025, which is within the six-month jurisdictional period. The

motion is supported by a declaration of counsel attesting that the error in the judgment amount resulted from counsel's mistake.

Though the motion is timely, the court declines to grant relief under this section. Section 473(b) authorizes the court to vacate a judgment entered as the result of mistake, inadvertence, surprise, or excusable neglect. Where relief under section 473(b) is granted, the court's authority is limited to vacating the default and/or default judgment. (See, e.g., *Bowman v. Bowman* (1947) 29 Cal.2d 808, 813; *Olson v. Olson* (1957) 148 Cal. App. 2d 479, 487-478.) Relief under section 473(b) restores the parties to the procedural position they occupied before entry of the default such that the case returns to a pre-judgment posture, and defendant necessarily regains the procedural rights attendant to that posture, including whatever time and opportunity the law affords to seek relief from default or otherwise respond.

Here, Plaintiff does not ask the court to set aside the default and default judgment so that the matter may proceed on the merits through the submission of a new request for entry of default and default judgment application, or other further proceedings. Instead, Plaintiff seeks to amend the existing judgment to include a revised damages calculation based on counsel's declaration. No authority is cited holding that this relief is available under CCP section 473(b).

B. Plaintiff's Authorities Do Not Establish a Clerical Error or Authority to Amend the Judgment

Although the motion requests relief under CCP section 473(b), Plaintiff relies primarily on cases addressing correction of clerical errors. Those authorities do not support the relief requested here because this case does not involve a clerical error of the type recognized in the case law.

Wilson v. Wilson (1948) 88 Cal.App.2d 382, for example, did not involve relief under CCP section 473(b), but rather the correction of a clerical error apparent on the face of the record. There, the final decree failed to carry out a binding antecedent judicial decision—specifically, the appellate court's order on remand requiring the disposition of community property—which rendered the omission clerical rather than judicial. There is no comparable clerical error here. The default judgment in this case accurately reflects the damages and credits presented to the court at the time the judgment was entered. The asserted error arises from counsel's miscalculation, not from a failure of the judgment to conform to a prior judicial ruling or a result compelled by law.

Martin v. Martin (1970) 2 Cal.3d 752 is also inapposite. In that case, which involved a bankruptcy, the error corrected *nunc pro tunc* was clerical because the written discharge order failed to reflect a judicial determination already made by the bankruptcy court. Before the discharge issued, the bankruptcy referee had expressly determined that Robert Martin's monthly payment obligation to Maxine Martin was nondischargeable under section 17(a) of the Bankruptcy Act. The referee intended the discharge to exclude that obligation. Nevertheless, the discharge entered in the case failed to incorporate the referee's prior ruling. The referee later found that the omission occurred "through a clerical mistake by one of the clerks," and corrected the discharge *nunc pro tunc* so that the record would "actually speak the truth"—i.e., to reflect what the court had already decided.

Although Plaintiff's motion does not rely on CCP sections 473(a)(1) or 473(d), the Court has considered whether either provision would authorize the relief requested and finds that neither applies.

Section 473(d) authorizes correction of clerical mistakes in a judgment or order. It is elementary that "[a] court can always correct a clerical, as distinguished from a judicial error which appears on the

face of a decree by a nunc pro tunc order. [Citation.] It cannot, however, change an order which has become final even though made in error, if in fact the order made was that intended to be made.” (*Estate of Eckstrom* (1960) 54 Cal.2d 540, 544.) In *Tokio Marine & Fire Ins. Corp. v. Western Pacific Roofing Corp.* (1999) 75 Cal.App.4th 110, the court elaborated on this point: “The test which distinguishes clerical error from possible judicial error is simply whether the challenged portion of the judgment was entered inadvertently (which is clerical error) versus advertently (which might be judicial error, but is not clerical error). [Citation.] Unless the challenged portion of the judgment was entered inadvertently, it cannot be changed post judgment under the guise of correction of clerical error.” (*Id.* at 117.)

Thus, the Court does not have unrestricted authority to reverse an order it intended to make but later determines to be erroneous. (*Bell v. Farmers Ins. Exchange* (2006) 135 Cal.App.4th 1138, 1144; see also *People v. McGee* (1991) 232 Cal.App.3d 620, 626.) The default judgment in this case accurately reflected the damages and credits presented at the time, and the asserted error arises solely from counsel’s misstatement of those amounts, not from any failure of the judgment to conform to the court’s intended result. Such error is not clerical within the meaning of section 473(d).

CCP section 473(a)(1) also does not provide authority to amend the judgment. Subdivision (a)(1) permits amendment of “any pleading or proceeding” in furtherance of justice, but that language does not reasonably encompass a final judgment. Judgments are addressed separately in subdivisions (b) and (d) of section 473, each of which authorizes post-judgment relief only in defined circumstances and subject to specific limitations.

III. Disposition

Plaintiff cites no authority holding that a court may amend or correct a judgment, *nunc pro tunc* or otherwise, under these circumstances. Therefore, the motion is **denied**.

Plaintiff shall file Order reflecting denial.

6. 9:00 AM CASE NUMBER: L25-00112
CASE NAME: LVNV FUNDING LLC VS. SHARA LUCIDO
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY:

***TENTATIVE RULING**

Counsel for Defendant has filed a Motion to be Relieved as Counsel and has properly noticed the Defendant.

The Motion is unopposed.

Analysis

Under Rule 1.16(b) of the California Rules of Professional Conduct, an attorney can move to withdraw from representing a client if the client has made it unreasonably difficult for the attorney to effectively represent the client; or, the client breaches a material term of the agreement related to the representation.

In this matter, Counsel has alleged that the Defendant has not responded to numerous attempts to